



Kenya National Commission on Human Rights (KNCHR)

Rec. No.	Recommendation	Action	Indicator
142.12	Consider ratifying the Second Optional Protocol to the International Covenant on Civil and Political Rights, aiming at the abolition of the death penalty.	Take steps towards the ratification of the Second Optional Protocol to the ICCPR through undertaking of public sensitization forums on the abolition of death penalty.	No. of stakeholders sensitized on the Second Optional Protocol to the ICCPR.
142.13 142.14 142.15 142.16 142.17 142.18 142.19 142.20 142.22	Consider ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment.	Take steps towards ratifying the Optional Protocol to the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment through undertaking of public sensitization forums.	- Advisory opinion prepared. - No. of stakeholders sensitized in the counties.
142.36 142.37 142.38	Take measures to strengthen the independence and efficiency of the Kenya National Commission on Human Rights, in accordance with the principles relating to the status of national institutions for the promotion and protection of human rights.	Appoint KNCHR Commissioners. Allocate adequate resources to the Commission.	- Commissioners appointed. - Amount of Funding given to KNCHR per financial year.
142.42 142.43 142.44 142.45	Consider reviewing the National Policy and Action Plan on Human Rights to ensure that it addresses all emerging issues.	Commence the Review of the National Policy and Action Plan on Human Rights.	- Concept Paper and budget developed. - Roadmap for review developed finalized and adopted.
142.49 142.52	Continue with the Security Sector reforms to enable police to effectively protect and respect human rights.	Undertake security sector reforms to enable police to protect and respect human rights.	- Number of police stations with an operational digitized OB. - Finalize the development of guidelines on the use of force, firearms, and public order management.

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142.49 142.52	Continue with the Security Sector reforms to enable police to effectively protect and respect human rights.	Strengthen Accountability Mechanisms in the security sector.	- No. of officers awarded for respected of human rights. - No of complaints lodged by the public. - No. of cases investigated, prosecuted and convicted. - No. of disciplinary cases commenced and concluded.
142.50	Continue with the public sector reforms in order to respect and protect all human rights.	Undertake public sector reform to uphold respect for human rights.	- Number of officers trained on human rights-based approach to service delivery. - Number of reports on compliance of human rights standards in service delivery.
142.55	Continue efforts aimed at fighting corruptiStrengthen training and awareness programmes for State officials in the field of human rights for the effective implementation of the law on prevention of torture.on as well as illicit financial flows and tax avoidance.	Undertake training and create awareness on prevention of torture among state officials and law enforcement officers.	No. of stakeholders trained on the Prevention of Torture Act.
142.157	Take further measures towards ensuring the safety of journalists, as well as towards guaranteeing the freedoms of expression, press, association, and peaceful assembly.	Undertake activities that promote safety of journalists.	- Number of cases investigated and prosecuted. - Number of officers trained on proper public order management. - No. of stakeholders trained on proper public order management.
142.159 142.161 142.163	Ensure the safety of human rights defenders.	Put in place a policy framework to protect human rights defenders.	Policy Framework developed.
142.139 142.143 142.153 142.154 142.158	Ensure transparent and effective investigations in cases where human rights defenders have been harmed and adopt a law protecting human rights defenders in accordance with international standards.	Investigate attacks against human rights defenders and journalists.	Number of cases investigated and prosecuted.
143.3	Review the 2018 'Associations bill' and ensure that NGO laws are in line with the right to freedom of expression.	Review the 'Associations Bill'.	Bill reviewed.
142.90	Continue the efforts to put an end to extra-judicial killings by police officers, including in the context of counterterrorism measures.	Develop strategies to end extra judicial killings by police including within the context of counter terrorism.	- Number of officers prosecuted and convicted for extra judicial killings. - Guidelines on use of force, firearms, and public order management developed.
142.82 142.83	Finalize the implementation of the National Court ruling declaring death sentence to be unconstitutional.	Adopt measures, including review of laws to comply with the Supreme Court ruling on the unconstitutional nature of the mandatory death penalty.	- Number of Laws reviewed and amended. - No of prisoners on death row for murder charges who have been resentenced as a result of the Muruatetu case. - No. of Prisoners on death row whose sentence has been commuted.
142.84 142.85 142.86 142.87 142.88 142.89	Continue taking steps to abolish the death penalty.	Undertake steps towards abolishing of the death sentence including carrying out sensitization forums and public surveys.	Public Survey Report on abolition of the Death Penalty.

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142.68 142.69 142.70 142.71 142.72	Continue efforts aimed at fighting corruption as well as illicit financial flows and tax avoidance.	Build Capacity on Business and Human Rights, Rights based Approaches to Development and Taxation and how to handle Illicit Financial Flows.	• No. of Officers trained and sensitized.
142.149 142.135	Implement the recommendations made by the Truth, Justice, and Reconciliation Commission, including investigating and punishing those responsible for serious human rights violations as well as providing remedy to the victims.	Ensure reparations for victims of human rights violations through development of a policy on reparations.	• Reparations Policy Developed.
142.51	Adopt the necessary legal framework to guide the operationalization of the Restorative Justice Fund.	Operationalize the Restorative Justice Fund.	• Regulations for the Restorative Justice Fund developed.
142.136 142.168	Intensify efforts to secure redress for survivors of sexual violence following 2007 and 2017 Presidential elections and establish mechanisms to ensure such crimes are never repeated.	Provide redress for survivors of SGBV following 2007 and 2017 Presidential elections.	• No. of victims who have received compensation and psychosocial support.
		Enhance capacity of security agencies to prevent, combat, report and investigate SGBV cases and other election offences during and after elections.	• No. of law enforcement officers who have received training.
		Establish Joint Election Security Coordination Framework.	• No. of One stop GBV Centers established.
			• Joint Election Security Coordination Framework established.
142.155	Implement the recommendations of the 2017 EU Election Observation Mission, especially to strengthen the independence of the media and journalists and to provide protection for civil society.	Implement recommendations of 2017 EU Election Observation Mission on strengthening independence of media and journalists and protection of civil society.	• Recommendations Implemented.
142.167 142.169	Ensure that all human rights are duly respected and protected in the run up to and during the coming general elections in 2022.	Fully Implement the 2021 IEBC Elections Operations Plan.	• The IEBC Elections Operations Plan Implemented.
143.4	Ensure that a human rights approach is reflected in the Government's 2020 submission of the reviewed Nationally Determined Contributions.	Develop adaptation programs in the Nationally Determined Contributions (NDC) that are human rights compliant and take into consideration the needs of vulnerable groups.	• Percentage increase of women, youth and other vulnerable groups accessing enterprise funds, climate finance and credit lines.
142.73 142.74 142.75	Ensure the final approval, launch and execution of the National Action Plan for the implementation of the Guiding Principles on Business and Human Rights.	Build Capacity and Disseminate the National Action Plan on Business and Human Rights.	• No. of stakeholders trained on Business and Human Rights and the National Action Plan on Business and Human Rights.
142.62	Develop and adopt appropriate legislative and administrative measures to combat discrimination against women as well as discrimination and violence against LGBTI people.	Develop and adopt legislative and administrative measures to combat discrimination against vulnerable groups.	• Specific measures adopted to address de facto discrimination in service provision including affirmative action measures adopted in policy plans.
142.178 142.179	Take additional measures to eliminate discrimination and harassment in the workplace, including on the bases of sex and sexual orientation and gender identity.	Amend the Employment Act to provide enforcement and redress mechanism for sexual harassment.	• Employment Act amended.
		Develop national guidelines on gender mainstreaming in the workplace.	• National Guidelines on gender mainstreaming in the workplace finalized.
		Develop and implement a national standard/tool for measuring compliance to employment act in all sectors and across all levels.	• Standard/tool finalized and implemented.